

26PR00278 Matter of The 2020 Gilbert Velazquez Revocable Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-26

Motion: Petition for Order Confirming Asset in Trust

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Petition for Order Confirming Asset in Trust

Tentative Ruling: The petition is GRANTED. The Court will sign the proposed order lodged March 5, 2026.

The property is titled to the settlor's 2014 trust. The 2014 trust was revoked by the settlor at the time the 2020 trust was executed. The property at issue is specifically listed in the schedule of trust assets for the 2020 trust. The petition is granted because a declaration by the settlor that he holds the property in trust for another, alone, is sufficient to render the property a trust asset. Estate of Heggstad (1993) 16 Cal.App.4th 943, 947.

The 2014 trust is not presented, so the Court cannot corroborate the revocability of that trust or the trust terms regarding disposition of the property on revocation. See California Probate Code §15410(a). However, the title of the 2014 trust indicates that it was revocable. Also, the verified and uncontested petition implies that the revocation was valid and the property reverted to the settlor at the time the 2014 trust was revoked, such that the settlor had the right in his individual capacity to transfer the property to the 2020 trust at the time of its creation. Therefore, the Court will proceed with granting the petition.